

25STCV09520 25STCV09520

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-08-04

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Case Number: 25STCV09520 Hearing Date: August 4, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: August 4, 2026 TRIAL DATE: November 17, 2026

CASE: Willis Oliver v. BMW of North America,
LLC

CASE NO.: 25STCV09520

MOTION

TO COMPEL DEPOSITION

MOVING PARTIES: Defendant BMW of North America, LLC, Century West BMW

RESPONDING PARTY: Plaintiff Willis
Oliver

CASE HISTORY:

03/28/25: Complaint filed.

TENTATIVE RULING:

Defendants' motion to compel deposition is GRANTED. Plaintiff
is ordered to appear for deposition within 20 days or on August 21, 2026.

Defendants' request for sanctions
is GRANTED. Plaintiff and counsel of record are ordered to pay Defendants
\$1,935 in sanctions, jointly and severally, within 20 days of this order.

Moving Parties to
give notice.

BACKGROUND

This is a lemon law action.

Defendants move to compel Plaintiff's
deposition and for \$1,935 in sanctions against Plaintiff and counsel of record.

DISCUSSION:

Motion to Compel Deposition

Legal
Standard

"If, after
service of a deposition notice, a party to the action ... without having served a
valid objection under Section 2025.410, fails to appear for examination, or to
proceed with it, or to produce for inspection any document, electronically
stored information, or tangible thing described in the deposition notice, the
party giving the notice may move for an order compelling the deponent's
attendance and testimony, and the production for inspection of any document,
electronically stored information, or tangible thing described in the
deposition notice." (CCP § 2025.450,
subd. (a).)

The
motion must be accompanied by a good faith meet and confer declaration under
section 2016.040 or, "when the deponent fails to attend the deposition and
produce the documents, electronically stored information, or things described
in the deposition notice, by a declaration stating that the petitioner has
contacted the deponent to inquire about the nonappearance." (CCP § 2025.450, subd. (b)(2).)

Here, on December

2, 2025, Defendant served a Notice of taking Plaintiff's deposition, set for January 22, 2026. (Sheehan Decl., ¶ 2; Exh. A.) Defendants sent a letter along with the Notice asking Plaintiff to provide additional dates and stating Defendants would move the deposition to accommodate if January 22, 2026, did not work. (Id.) On January 16, 2026, Plaintiff served his objections and stated he would not appear. (Id., ¶ 5.)

On January

20, 2026, Defendants issued an amended notice of taking Plaintiff's deposition set for March 17, 2026. (Sheehan Decl., ¶ 7; Exh. E.) On March 13, 2026, Plaintiff again served his objections and stated he would not appear. (Id., ¶ 9.)

Defendant

issued another notice of taking Plaintiff's deposition for June 19, 2026, a date provided by Plaintiff. (Sheehan Decl., ¶ 17.) On June 16, 2026, Plaintiff again served his objections and stated he would not appear yet again. (Id., ¶ 21.) Defendant asserted to Plaintiff that it was untimely and confirmed the deposition would go forward. (Id., ¶ 22.) Plaintiff failed to appear for their properly noticed deposition on June 19, 2026. (Id., ¶ 23.)

Plaintiff

argues that Plaintiff's counsel has diligently worked to provide Defendant with alternative deposition dates. On July 7, 2026, Plaintiff's counsel provided Defendant with available deposition dates, which have not been finalized. Thus, Plaintiff contends the motion should be denied.

Plaintiff has repeatedly canceled

the depositions even after scheduling them on a mutually agreed upon date. Further, unavailability is not a proper basis for an objection. As Plaintiff was served with a deposition notice, and did not proceed with the deposition, the motion to compel is GRANTED. Plaintiff is ordered to appear for deposition within 20 days or on August 21, 2026.

Sanctions

If this motion is granted, the court

shall impose a monetary sanction in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is

affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP § 2025.450(g)(1).)

While

Plaintiff argues that sanctions are unwarranted because it has never refused to appear for deposition, Plaintiff's actions show Plaintiff repeatedly canceled at the last minute and has been unresponsive to Defendants' emails seeking alternative dates in May 2026. Defendant has been attempting to take Plaintiff's deposition for 8 months. Thus, there is no substantial justification.

Defendant's

request for sanctions is granted in the amount of \$1,935 (5 hours at \$375 an hour, plus \$60 filing fee), to be paid within 20 days of this order.

CONCLUSION:

Accordingly, Defendants' motion to compel deposition is GRANTED. Plaintiff is ordered to appear for deposition within 20 days of this order or on August 21, 2026.

Defendants' request for sanctions

is granted. Plaintiff and counsel of record are ordered to pay Defendants \$1,935 in sanctions, jointly and severally, within 20 days of this order.

Moving Parties to
give notice.

IT IS SO ORDERED.

Dated: August 4, 2026 _____

Rolf
M. Treu

Judge
of the Superior Court

Any party may submit on the

tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.